

24STCV07745 24STCV07745

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-19

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Case Number: 24STCV07745 Hearing Date: August 19, 2026 Dept: 734

Plaintiff alleges that Defendants

wrongfully foreclosed on property which secured loans made by Defendant Tolbex, Inc. to Plaintiff.

On

June 22, 2026, the Court dismissed this action without prejudice. Defendant moves for an order expunging lis pendens.

TENTATIVE RULING

On the

Court's own motion, and for purposes of hearing the instant motion by Defendant Tolbex, Inc. only, the Court sets aside its order of dismissal entered on June 22, 2026, on the ground that the dismissal was inadvertently premature due to the lis pendens remaining of record.

The motion of Defendant Tolbex, Inc. to expunge lis pendens is GRANTED.

With

the expungement of the lis pendens ordered, this case is again ordered dismissed without prejudice.

ANALYSIS

Request For Judicial Notice

Defendant requests that the Court take

judicial notice of the following:

Notice of lis pendens, recorded on March 28, 2024, against the Properties in the Official Records of County of Los Angeles, Document No. 20240200828.

The request is GRANTED. The

Court may take judicial notice of recorded documents. (Evans v. California Trailer Court, Inc. (1994)

28 Cal.App.4th 540, 549, overruled on other grounds in Black Sky Capital, LLC v. Cobb (2019) 7 Cal.5th 156, 165; Alfaro v. Community Housing Improvement System &

Planning Assn., Inc. (2009) 171 Cal.App.4th 263, 274).

Discussion

On

June 22, 2026, the Court dismissed this action without prejudice. Defendant moves for an order expunging lis pendens.

At any time after

notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. . . . Evidence or declarations may be filed with the motion to expunge the notice. The court may permit evidence to be received in the form of oral testimony, and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32.

(Code Civ. Proc. § 405.30.)

To allow the instant motion to be heard, the Court on its own motion sets aside the order of dismissal entered on June 22, 2026, on the ground that the dismissal was inadvertently premature due to the lis pendens remaining of record.

Given the foregoing, the “well-settled” rule a trial court lacks jurisdiction after a voluntary dismissal must be qualified. Even after entering a judgment of dismissal pursuant to a party’s voluntary dismissal, the court has jurisdiction to vacate such judgment under section 473. . . . Accordingly, because the superior court had power to determine the issues, we consider the merits of the parties’ contentions.

(Basinger v. Rogers

& Wells (1990) 220 Cal.App.3d 16, 21-23 (19.)

This court has also recognized the power of the trial court independently of statute to set aside a default judgment entered through the court's inadvertence. (Citation omitted.) In 1 Freeman on Judgments (5th ed.) p. 432, it is said that where the court is deceived or is laboring under a mistake or misapprehension as to the state of the record or as to the existence of extrinsic [*188] facts upon which its action is predicated, it has inherent power to vacate a judgment which would not otherwise have been rendered. That principle was applied by this court in setting aside one of its own judgments almost three years after it was rendered because the first order was made on the theory that the defendant had not moved for a new trial when in fact he had done so. (In re Rothrock, 14 Cal.2d 34 [92 P.2d 634].)

Here the later order was in effect based on the inadvertence and mistake of the court in overlooking matters of record and facts within the court's judicial knowledge. On its face the record does not disclose invalidity for lack of jurisdiction. The order was within the court's general jurisdiction. It was made in the exercise of its inherent power under that jurisdiction. Factual sufficiency to support the exercise of the power is not controverted by the record. The intendments which govern are controlling to support the propriety of the exercise of jurisdiction. (Phelan v. Superior Court, 35 Cal.2d 363 [217 P.2d 951].)

(Key System Transit Lines v. Superior Court of Alameda County (1950) 36 Cal.2d 184, 186-188 [bold emphasis added].)

[T]he court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice where the court finds the pleading does not contain a real property claim.

(Code Civ. Proc. § 405.31.)

Here, the case has been dismissed, and Plaintiff has not refiled a complaint, nor appealed the dismissal. As such, there is no real property claim or action pending to support the lis pendens. (Code Civ. Proc. § 405.31.)

Accordingly,

the motion to expunge lis pendens is GRANTED. The case is again ordered dismissed without prejudice.